

GZ: 2021-0.637.047 dated September 28, 2021 (Case Number: DSB-D202.291)

[Note from the editor: This decision is published as unprocessed plain text. The parties involved are state authorities or a public law corporation, whose names can also be derived from the cited legal provisions. Therefore, a meaningful pseudonymization of this decision to be published in accordance with § 23 para. 2 DSG was not possible.]

DECISION

SPREAD

The Data Protection Authority decides on the application of the Federal Ministry for Digitalization and Business Location (Applicant) dated August 30, 2021, for the approval to transmit personalized email addresses to an evaluation institute pursuant to § 8 para. 4 DSG as follows:

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The application is rejected.

Legal basis: § 8 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended.

REASONING

A. Submissions of the Parties and Procedural History

1. The applicant requested in a letter dated August 30, 2021, an approval based on § 8 para. 4 DSG to provide personalized email addresses to an evaluation institute for the purpose of a survey related to the funding program "Hardship Fund."

The funding program "Hardship Fund" financially supports sole proprietors, micro-enterprises, and freelance service providers in coping with the Covid-19 crisis. Since March 2020, approximately 2 billion euros in funding have been disbursed to about 230,000 individuals.

To evaluate the effects of the Hardship Fund and the satisfaction with the funding program in accordance with a recommendation from the Court of Auditors, an impact analysis is necessary, which is to be conducted by commissioning an evaluation institute.

The research questions planned include, for example:

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"what percentage of the beneficiaries who received funding are still active in the market,"

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"how satisfied are the beneficiaries with the funding,"

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"were the goals of the federal government met,"

as well as similar questions.

2. In a letter dated September 10, 2021, the applicant stated that it was not certain in this context whether the requirements of § 8 para. 2 DSG would be met, as the transmission of data to an evaluation institute for conducting a satisfaction analysis in connection with the administration of the Hardship Fund was not directly and clearly justified in the "public interest." The relevant case law and the affirmed permissibility of data transfer without consent were not clearly transferable to this case. Therefore, in the absence of public interest, an approval in the sense of § 8 para. 4 DSG by the Data Protection Authority would be necessary.

B. Findings of Facts

The submissions of the applicant are the basis for the findings of facts.

C. From a legal perspective, it follows:

C.1. Applicable Legal Provisions

§ 8 DSG reads as follows, including the heading (emphasis added by the Data Protection Authority):
Provision of Addresses for Notification and Survey of Affected Persons

§ 8. (1) Unless otherwise expressly provided by law, the transmission of address data of a specific group of affected persons for the purpose of their notification or survey requires the consent of the affected persons.

(2) However, if an impairment of the confidentiality interests of the affected persons is unlikely given the selection criteria for the group of affected persons and the subject matter of the notification or survey, no consent is required if:

1. data of the same controller are processed, or
2. in the case of an intended transmission of the address data to third parties:
 - a) there is also a public interest in the notification or survey, or
 - b) none of the affected persons has raised an objection to the transmission within a reasonable period after being informed about the reason and content of the transmission.
- (3) If the conditions of para. 2 are not met and obtaining the consent of the affected persons according to para. 1 would require a disproportionate effort, the transmission of address data is permissible with the approval of the Data Protection Authority according to para. 4, provided that the transmission to third parties:
 1. is for the purpose of notification or survey based on a significant interest of the affected person themselves,
 2. is based on a significant public interest in notification or survey, or
 3. is intended for surveying the affected persons for scientific or statistical purposes.
- (4) The Data Protection Authority shall grant approval for the transmission upon request of a controller processing address data if the applicant credibly demonstrates the existence of the conditions mentioned in para. 3 and predominant legitimate confidentiality interests of the affected persons do not oppose the transmission. The Data Protection Authority may attach conditions and requirements to the approval as far as necessary to safeguard the legitimate interests of the affected persons.
- (5) The transmitted address data may only be processed for the approved purpose and must be deleted as soon as they are no longer needed for notification or survey purposes.
- (6) If it is permissible under the above provisions to transmit the names and addresses of individuals belonging to a specific group of affected persons, the necessary processing for the purpose of selecting the address data to be transmitted may also be carried out.

C.2. In the Matter

The privacy policy regarding the funding program "Hardship Fund" indicates that this is managed under joint data protection responsibility in accordance with Art. 26 GDPR between the Federal Ministry for Digitalization and Business Location (BMDW – the applicant) Stubenring 1, 1010 Vienna, and the Austrian Chamber of Commerce (WKÖ), Wiedner Hauptstraße 63, 1045 Vienna.

From the established facts, it follows that personalized email addresses, which are processed by the responsible parties, are to be transmitted to an evaluation institute for the purpose of conducting an impact analysis commissioned by d.

According to § 8 para. 2 DSG, no consent from an affected person or approval from the data protection authority is required if, considering the selection criteria for the group of affected persons and the subject of the notification or survey, an impairment of the confidentiality interests of the affected persons is unlikely and either data of the same responsible party is processed or – in the case of the intended transmission of address data to third parties – there is a public interest in the survey or none of the affected persons has raised an objection to the transmission within a reasonable period after being informed about the reason and content of the transmission.

In the present case, personalized email addresses are to be processed and transmitted, which were processed by the responsible parties during the administration of the funding program "Hardship Fund." An impairment of the confidentiality interests of the affected persons is unlikely, especially since no special categories of personal data are to be processed and there is no appearance of selection based on sensitive data types. Rather, all funding participants are to be surveyed.

The data of the affected persons have also already been processed to the extent legally established in the "Federal Act on the Establishment of a Hardship Fund (Hardship Fund Act)" and in connection with the information provided by the affected persons during the funding application process. The basic processing by the responsible parties is therefore at least not unpredictable for the affected persons.

As established, the personal data to be processed pertains to those of the same responsible party, which is why § 8 para. 2 no. 1 DSG is applicable in this case.

For the sake of completeness, it should also be noted that a subsumption under § 8 para. 2 no. 2 DSG would have led to a rejection, as from the perspective of the data protection authority, both an information to the affected persons in the sense of § 8 para. 2 no. 2 lit. b DSG could have been issued,

and a public interest in the sense of § 8 para. 2 no. 2 lit. a DSG exists. A public interest is indicated when processing deals with topics that are of significant importance to society as a whole (cf. Löffler in Knyrim, DatKomm Art. 89 GDPR, Rz 76). Such an interest can be assumed in the evaluation of the impact of measures that are financed with significant public resources and are also intended to have macroeconomic effects. Statistical foundations are needed to plan and implement the future design of similar funding programs, including the necessary raising of financial resources, with the required reliability and effectiveness (cf. in this sense, for example, DSK from April 21, 2006, GZ: K202.045/0004-DSK/2006). In this context, it should also be noted that the present evaluation was explicitly recommended by the Court of Audit (see the report of the Court of Audit on the Hardship Fund – Funding Administration, available at https://www.rechnungshof.gv.at/rh/home/home/Bund2021_29_Haertefallfonds_Foerderabwicklung.pdf, p. 108).

As a result, the conditions of § 8 para. 2 no. 1 DSG are already fulfilled, which is why the application was to be rejected accordingly.

A request for fee payment is omitted in light of § 2 of the Fee Act 1957.